

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Danielle Pagano	Team: Team # 4	CCRB Case #: 201212657	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 09/28/2012 8:30 PM	Location of Incident: § 87(2)(b) 111th Precinct stationhouse	18 Mo. SOL 3/28/2014	Precinct: 111
Date/Time CV Reported Sat, 09/29/2012 11:50 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 09/29/2012 11:50 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Kyle Ferguson	17874	911662	111 PCT
2. POM Michael Dimambro	01455	948895	111 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. Officers			
2. SGT Christophe Estrella	03090	933768	111 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Kyle Ferguson	Abuse: PO Kyle Ferguson entered § 87(2)(b) in Queens.	A . Unsubstantiated
B . POM Michael Dimambro	Abuse: PO Michael Dimambro entered § 87(2)(b) in Queens.	B . Unsubstantiated
C . POM Kyle Ferguson	Abuse: PO Kyle Ferguson threatened to arrest § 87(2)(b) at the 111th Precinct stationhouse.	C . Exonerated
D . POM Michael Dimambro	Abuse: PO Michael Dimambro threatened to arrest § 87(2)(b) at the 111th Precinct stationhouse.	D . Exonerated
E . POM Kyle Ferguson	Force: PO Kyle Ferguson tightly handcuffed § 87(2)(b) at the 111th Precinct stationhouse.	E . Unfounded
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On September 29, 2012, § 87(2)(b) filed this complaint with the CCRB via the online website. On September 28, 2012, at approximately 8:30 p.m., PO Kyle Ferguson and PO Michael Dimambro of the 111th Precinct arrested § 87(2)(b) § 87(2)(b)'s brother at § 87(2)(b) in Queens. The following allegations resulted from their actions:

- **Allegation A) Abuse of Authority: PO Kyle Ferguson entered § 87(2)(b) in Queens.**
- **Allegation B) Abuse of Authority: PO Michael Dimambro entered § 87(2)(b) in Queens.**

§ 87(2)(g)

Therefore, it is recommended that Allegations A and B be closed as *unsubstantiated*.

- **Allegation C) Abuse of Authority: PO Kyle Ferguson threatened to arrest § 87(2)(b) at the 111th Precinct stationhouse.**
- **Allegation D) Abuse of Authority: PO Michael Dimambro threatened to arrest § 87(2)(b) at the 111th Precinct stationhouse.**

§ 87(2)(g)

Therefore, it is recommended that Allegations C and D be closed as *exonerated*.

- **Allegation E) Force: PO Kyle Ferguson tightly handcuffed § 87(2)(b) at the 111th Precinct stationhouse.**

§ 87(2)(g)

Therefore, it is recommended that Allegation E be closed as *unfounded*.

- § 87(4-b) § 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old Iranian male with black hair and black eyes. § 87(2)(b)

CCRB Statement

On October 12, 2012, § 87(2)(b) was interviewed at the CCRB (enc. C3-C8). His statement is summarized below. § 87(2)(b) also provided a phone statement on October 4, 2012 (enc. C1-C2), § 87(2)(g)

On September 28, 2012, at approximately 8:30 p.m., § 87(2)(b) received a phone call from his mother, who stated that police officers had come to their house at § 87(2)(b) in Queens and arrested § 87(2)(b) § 87(2)(b) drove to the Precinct by himself, and upon arrival at the 111th Precinct stationhouse, he saw PO Kyle Ferguson § 87(2)(b) obtained his name later during the incident) in the parking lot, along with his partner, PO2, whom the CCRB identified as PO Michael Dimambro of the 111th Precinct, as they were escorting § 87(2)(b) into the stationhouse. PO Ferguson saw § 87(2)(b) § 87(2)(b) and said, "Back off, otherwise I'm going to arrest you." § 87(2)(b) asked

what he was going to arrest him for, and PO Ferguson responded, "Go back in the Precinct, or I'm going to arrest you." During § 87(2)(b)'s phone statement, he said that PO Ferguson became annoyed at § 87(2)(b) while in the 111th Precinct stationhouse and told him to leave. § 87(2)(b) said that PO Ferguson stated, "I don't have the patience for you, and if you stay here, I'm going to arrest you," while they were in the stationhouse, as well. PO Dimambro also threatened to arrest § 87(2)(b) and dangled a pair of handcuffs in front of him. § 87(2)(b) did not recall the exact phrasing of PO Dimambro's threat of arrest. § 87(2)(b) was outside with the officers when this occurred and heard the conversation. § 87(2)(b) then went back inside the Precinct, and the officers brought his brother inside and took him to the sergeant.

PO Ferguson went up to § 87(2)(b) in the stationhouse, by the front desk, to give him § 87(2)(b)'s cell phone, and § 87(2)(b) told PO Ferguson that he should not have arrested his brother. PO Ferguson responded that he had arrested § 87(2)(b) for evicting his girlfriend from the house. § 87(2)(b) stated that he was the owner of the house, not § 87(2)(b) so it was a wrongful arrest. He then told PO Ferguson that § 87(2)(b) had § 87(2)(b), so PO Ferguson had to take his handcuffs off. When PO Ferguson heard this, he tightened § 87(2)(b)'s handcuffs, which § 87(2)(b) felt and saw. § 87(2)(b) appeared to sustain pain in his arms. Both § 87(2)(b) and PO Ferguson were in front of the desk sergeant, PO3, when PO Ferguson did this. § 87(2)(b) described PO3 as a male wearing a white shirt. PO3 remains unidentified because the desk sergeant listed on the roll call is Sgt. Quinones, a female. There were also about eight officers there who witnessed this, including PO Dimambro. § 87(2)(b) did not see whether or not § 87(2)(b)'s handcuffs were removed. In contrast, § 87(2)(b) said in his phone statement that the tightening of the handcuffs outside of the stationhouse when he first arrived.

After PO Ferguson tightened § 87(2)(b)'s handcuffs, § 87(2)(b) started raising his voice, so PO3 came back from behind the counter and asked § 87(2)(b) what was wrong. § 87(2)(b) told PO3 that his brother needed medical attention for § 87(2)(b). PO3 stated that they did not want any lawsuits and would get medical attention for § 87(2)(b). PO Ferguson asked if § 87(2)(b) wanted an EMT, and § 87(2)(b) said that he could call one. PO Ferguson stated that he would call the EMT instead, which he proceeded to do, though § 87(2)(b) did not receive medical attention until the next day. Despite this, § 87(2)(b) mentioned numerous times that his brother did not receive medical attention.

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old Iranian male with black hair and brown eyes. § 87(2)(b)

CCRB Statement

On October 12, 2012, § 87(2)(b) was interviewed at the CCRB (enc. D1-D6). His statement is summarized below.

On September 24, 2012, § 87(2)(b) evicted his girlfriend, § 87(2)(b) from their house, because she had been cheating on him. § 87(2)(b) and his girlfriend have a son together, a toddler, who lives in § 87(2)(b)'s home. On September 28, 2012, two officers, whom the CCRB identified as PO Kyle Ferguson and PO Michael Dimambro, arrived at § 87(2)(b)'s house at § 87(2)(b) in Queens with § 87(2)(b) and knocked on the front door. § 87(2)(b)'s house has a

layout wherein there are two doors that one must enter before actually arriving inside the house; there is a space in between the two doors. § 87(2)(b) went downstairs and saw § 87(2)(b) outside the outermost door, but when he opened it, he saw PO Ferguson and PO Dimambro. He asked them what was going on, and they responded that they wanted to speak with him. § 87(2)(b) said, "Go ahead and talk to me right now," but the officers insisted on coming inside, stating that they wanted to "speak to § 87(2)(b) like a gentleman." § 87(2)(b) asked if they had an arrest warrant, and they did not answer. He went through the innermost door and was going to close it so that the officers could not come in, but they quickly followed behind him before he had a chance to shut the door. They followed § 87(2)(b) upstairs, and § 87(2)(b) told them that they had to get out. Both officers said, "We're going to arrest you," and § 87(2)(b) told them again that they had to get out of the house. § 87(2)(b) again asked them if they had an arrest warrant, but the officers did not show him anything. Both PO Ferguson and PO Dimambro then handcuffed § 87(2)(b) § 87(2)(b) told them to relax and not to pull his arm because he had a § 87(2)(b) § 87(2)(b) § 87(2)(b)'s father, came in the room and tried to interfere by coming close to the officers and stating, "Relax, what are you doing!" The officers then took § 87(2)(b) to a marked RMP and drove him to the 111th Precinct stationhouse.

Upon arrival, PO Ferguson and PO Dimambro put § 87(2)(b) in a holding cell and took his handcuffs off. He had handcuffs on for a total of about 20 minutes. While § 87(2)(b) was in the cell, he heard PO Ferguson argue with § 87(2)(b) outside of the Precinct, because the cell window was open. § 87(2)(b) told PO Ferguson that his mother wanted to press charges against § 87(2)(b) because she had scratched his mother's hand. PO Ferguson stated, "If your mother wants to press charges, we'll put you guys in jail." § 87(2)(b) then yelled, "What are you doing with my brother!" so PO Ferguson told PO5 to close the cell window, which he then did. § 87(2)(b) was unable to hear any of the conversation after that. At an unknown point while § 87(2)(b) was in the stationhouse, he told PO Ferguson that he has diabetes, so PO Ferguson called EMS. EMS offered to take § 87(2)(b) to go to the hospital, but he refused because he did not want to stay in jail longer than necessary. § 87(2)(a) 160.50

Witness: § 87(2)(b)

Phone Statement:

§ 87(2)(b) provided a brief phone statement on October 18, 2012 (enc. D7). Her statement is summarized below.

§ 87(2)(b) and § 87(2)(b) lived with each other for three years and have a young son together. On a date § 87(2)(b) was unable to recall, § 87(2)(b) came to § 87(2)(b)'s place of employment and took § 87(2)(b)'s key for the house in which they both lived. After she left work, she went to her house and knocked, but § 87(2)(b) would not open the door. He came outside and told her that she could not come back there and that she could not see her son again; he then told her that if she wanted her personal belongings back, she would have to call the police. § 87(2)(b) called the police, and several officers arrived, who told her she could not go back in the house. § 87(2)(b) then hired a lawyer and went back to the police station, where she spoke with PO Ferguson. PO Ferguson told her that § 87(2)(b) had evicted her illegally, because she had residency in the house. § 87(2)(b) waited at the house with PO Ferguson and his partner until § 87(2)(b) came home. PO

Ferguson asked § 87(2)(b) if they could go inside, and he said yes. The officers went upstairs while § 87(2)(b) waited downstairs. § 87(2)(b) could hear the officers speaking with § 87(2)(b). They told him that it was illegal for him to evict § 87(2)(b) because she had residency in his home. PO Ferguson asked Mohammdreza § 87(2)(b) to go with them to the stationhouse, but he refused. PO Ferguson then told § 87(2)(b) to put his hands behind his back, which he also refused to do. The officers then arrested him and took him downstairs, placing him in the police vehicle.

NYPD Statements

Subject Officer: PO KYLE FERGUSON

- PO Ferguson is a § 87(2)(b)-old white male § 87(2)(b). He has blonde hair and blue eyes.
- On September 28, 2012, PO Ferguson worked from 3:00 p.m. to 11:35 p.m. PO Ferguson was assigned to clerical duty at the start of tour, but his sergeant later asked him to investigate a domestic dispute, as he is the Domestic Violence Officer for the 111th Precinct. During the investigation, he worked with PO Michael Dimambro, both dressed in uniform.

Memo Book

PO Ferguson had two memo book entries regarding this incident and a written note on his fly page (enc. E1-E3). At 8:34 p.m., there was a family visit at § 87(2)(b). At 9:00 p.m., a family arrest was made for § 87(2)(a) 160.50 § 87(2)(b)'s arrest), arrest number § 87(2)(a) 160.50.

Arrest Report

§ 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

CCRB Statement

On January 24, 2013, PO Ferguson was interviewed at the CCRB (enc. E7-E9). His statement is summarized below.

On September 28, 2012, at approximately 8:34 p.m., PO Ferguson went with PO Dimambro to § 87(2)(b) to investigate § 87(2)(b)'s complaint of § 87(2)(b). § 87(2)(b) waited in her car down the street while the officers went up to § 87(2)(b)'s residence. The officers knocked on the door of the residence, and § 87(2)(b) answered, wearing a blue t-shirt and shorts. PO Ferguson told him that his wife, § 87(2)(b) had filed a complaint against him for § 87(2)(b). PO Ferguson and PO Dimambro stood on the stoop and told § 87(2)(b) that they could either talk where they were or inside the apartment, and § 87(2)(b) responded by verbally inviting the officers inside, saying, "Okay, come inside." § 87(2)(b) opened both the screen and solid door in order to let the officers inside. He then led the officers up the staircase to his apartment; there was no additional door before entering the apartment itself. § 87(2)(b) did not at any point tell the officers that they could not come into the apartment or ask them to leave.

PO Ferguson, PO Dimambro, and § 87(2)(b) went into the kitchen, which is to the right at the top of the staircase. The living room is to the left, and § 87(2)(b)'s mother and father were inside the living room, along with § 87(2)(b).

§ 87(2)(b)'s son, a toddler. Once the officers and § 87(2)(b) were in the kitchen, PO Ferguson again explained the complaint for illegal eviction. § 87(2)(b) was very agitated and puffed out his chest. He said, "Yeah, I kicked her § 87(2)(b) out. Fuck her; I don't like her. She's a slut." PO Ferguson explained that it did not matter what he thought of § 87(2)(b) only that he could not illegally evict her, and § 87(2)(b) responded, "Well, fuck her, she's not coming in here." PO Ferguson told § 87(2)(b) that he would have to be placed under arrest if he refused to let § 87(2)(b) into the apartment and asked § 87(2)(b) if he would like to get a change of pants before being placed under arrest, as he was wearing shorts and it was cold outside. § 87(2)(b) responded, "Fuck you, I ain't going anywhere." He then said that his wife was a "cunt" who slept with everyone, and even accused PO Ferguson of sleeping with her. PO Ferguson said, "Look, you're under arrest; I just haven't placed you in cuffs yet. I don't want to arrest you in front of your child, but I will, so if you want to grab some pants, we can do this like gentlemen and walk out and no one has to know anything." § 87(2)(b) responded, "Fuck you, I ain't going."

PO Ferguson then called on his radio for officer assistance, as § 87(2)(b) was a large, fit personal trainer, and PO Ferguson thought that the officers might have difficulty handcuffing him. PO Ferguson tried to grab § 87(2)(b)'s hands, but he tightened up his shoulder area to prevent PO Ferguson from handcuffing him. PO Ferguson then got one handcuff on, and PO Dimambro grabbed the other arm. § 87(2)(b)'s father came in the kitchen while the officers were attempting to handcuff § 87(2)(b) and when § 87(2)(b) saw his father, he loosened up his shoulders, said, "Fuck it, fuck it," and let the officers handcuff him. PO Ferguson did not remember § 87(2)(b)'s father saying anything. While the officers were handcuffing § 87(2)(b), § 87(2)(b) did not mention an injury to his shoulder or any other type of injury. He did not ask the officers to loosen his handcuffs. PO Ferguson and PO Dimambro then took him downstairs, and PO Ferguson drove them to the Precinct, PO Dimambro in the passenger's side. During the ride to the stationhouse, § 87(2)(b) was extremely angry and was screaming, "Fuck you! Fuck you!" at the officers. LT "Catechis," who is the 3rd Platoon commander, responded to the scene, but the officers no longer needed assistance by the time he reached the location.

Upon arrival at the Precinct, § 87(2)(b)'s brother, § 87(2)(b) attempted to approach the RMP. PO Ferguson lowered the window and told him that he had to stay away and could not talk to his brother. § 87(2)(b) responded that he was an EMT in NYC, and PO Ferguson said, "Okay, but he's under arrest and you can't touch or talk to him. Just wait over there." § 87(2)(b) PO Ferguson did not threaten to arrest § 87(2)(b) at this point. PO Ferguson then walked § 87(2)(b) into the Precinct, searched him, put him in the cell, and immediately removed his handcuffs, as per procedure. § 87(2)(b) was not injured and did not complain of any pain or ask to go to the hospital, but PO Ferguson called EMS because § 87(2)(b) has diabetes. Once EMS arrived, they said that § 87(2)(b) was fine but asked him if he wanted to go to a hospital, which he refused.

PO Ferguson did not recall § 87(2)(b) ever asking to have his handcuffs loosened and did not remember ever having to adjust the handcuffs. Neither PO Ferguson nor PO Dimambro tightened his handcuffs or reapplied § 87(2)(b)'s handcuffs after placing him in the holding cell. § 87(2)(b) was eventually taken to Central Booking, but PO Ferguson was not the officer who took him there and did not know who did.

At an unknown point while § 87(2)(b) was in the holding cell, § 87(2)(b) came up to PO Ferguson and said, “Why the fuck did you lock up my brother?” PO Ferguson told him it was because § 87(2)(b) had illegally evicted his wife, and § 87(2)(b) responded, “Fuck her, she’s cheating on him.” PO Ferguson said that it did not matter and that § 87(2)(b) could not illegally evict her. PO Ferguson also told § 87(2)(b) that it was cold and he should bring § 87(2)(b) some clothes, which he later did. § 87(2)(b) was not within hearing range of this conversation. PO Ferguson denied ever threatening to arrest § 87(2)(b).

Subject Officer: PO MICHAEL DIMAMBRO (111th Precinct)

- PO Dimambro is a § 87(2)(b)-old white male § 87(2)(b). He has brown hair and brown eyes.
- On September 24, 2012, PO Ferguson worked from 3:00 p.m. to 11:35 p.m. PO Dimambro was assigned to Precinct Sector Patrol. He worked in uniform with PO Ferguson in a marked RMP, the number of which he did not know.

Memo Book:

PO Dimambro did not have any memo book entries or notes on his fly page regarding this incident (enc. E7-E9).

CCRB Statement

On January 24, 2013, PO Dimambro was interviewed at the CCRB (enc. F4-F5). He was told to go with PO Ferguson to § 87(2)(b) and they arrived at the location together in a marked RMP. One of the officers knocked on the door, and § 87(2)(b) answered the door. PO Dimambro did not recall the layout of the house, or whether or not there was a screen door in addition to a solid one at the entrance of the house. PO Dimambro was unable to recall whether either officer asked to go upstairs, but remembered that § 87(2)(b) invited the officers inside the apartment, though he was unable to recall § 87(2)(b)'s exact words. § 87(2)(b) walked the officers up the stairs to the kitchen.

PO Ferguson told § 87(2)(b) that he was going to place him under arrest, and § 87(2)(b) said, “I’m not fucking getting arrested in my own house.” PO Ferguson told him to put his hands behind his back, and § 87(2)(b) put his chest out and said, “You’re not going to arrest me.” The officers turned § 87(2)(b) around, and § 87(2)(b) put his arms in front of his torso and clenched his arms together to make it difficult for the officers to put the handcuffs on. At this time, § 87(2)(b)'s father came into the kitchen, so PO Dimambro told him to stand back, and the father complied. PO Ferguson grabbed § 87(2)(b)'s left arm, and PO Dimambro grabbed his right. PO Ferguson then handcuffed § 87(2)(b) which PO Dimambro did not participate in. § 87(2)(b) was extremely irate and screamed and cursed at the officers during the entire interaction in the kitchen. The officers then took § 87(2)(b) downstairs and into their RMP.

Once in the RMP, § 87(2)(b) was calm for a short while but then became very angry again, saying, “This is bullshit!” Upon arrival at the 111th Precinct stationhouse, PO Ferguson processed the arrest. § 87(2)(b) came to the Precinct by himself as § 87(2)(b) was being fingerprinted. He was sitting on the bench and was very irate that his brother had been arrested, which he expressed by saying that his brother “didn’t do nothing. It was her § 87(2)(b)'s fault.” After sitting for a long time in the stationhouse, § 87(2)(b) attempted to walk to § 87(2)(b)'s cell, which is located in the

back right side of the stationhouse. PO Dimambro stopped him before he passed the desk and told him that he could not walk into the cell area because PO Ferguson was processing the arrest, and that he needed to calm down and could be arrested for obstruction of governmental administration if he tried to speak with his brother in the cell area. § 87(2)(b) responded that the arrest was “bullshit.” PO Dimambro did not know if the desk sergeant saw the interaction between himself and § 87(2)(b). He did not recall whom the desk sergeant was or which other officers were in the Precinct.

PO Dimambro never readjusted § 87(2)(b)'s handcuffs and did not recall anyone else doing so. He did not recall § 87(2)(b) ever complaining of any injuries or telling the officers about an injury to his shoulder. He did not remember whether § 87(2)(b) asked for or received any medical attention. § 87(2)(b) did not have any visible injuries. PO Dimambro observed § 87(2)(b) briefly in the cell area but did not recall if anyone was in the cell with him or if he had handcuffs on while in the cell.

Disposition of Arrest

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- As of February 22, 2013, neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim with the City of New York in regards to this incident (enc. K1).

Civilian Criminal History

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is § 87(2)(b)'s and § 87(2)(b)'s first CCRB complaint (enc. A2-A3).

Subject Officer CCRB History

- The CCRB has not substantiated any allegations against PO Ferguson in his nineteen years of service to the NYPD (enc. A1). The CCRB has not substantiated any allegations against PO Dimambro in his two years of service to the NYPD (enc. A2).

Conclusion

Identification of Subject Officers

- Both PO Ferguson and PO Dimambro acknowledged interacting with § 87(2)(b) and § 87(2)(b).

Investigative Findings and Recommendations

- **Allegation A) Abuse of Authority: PO Kyle Ferguson** § 87(2)(b) **in Queens.**
- **Allegation B) Abuse of Authority: PO Michael Dimambro entered** § 87(2)(b) **in Queens.**

PO Ferguson stated that he asked § 87(2)(b) whether he preferred to speak with the officers on the stoop or inside the apartment. He said that § 87(2)(b) responded by inviting the officers into his home, and that he never told the officers that they could not come into the apartment, nor did he ask them to leave. PO Dimambro did not remember whether he and PO Ferguson asked if they could enter, but recalled that § 87(2)(b) Daeisdaeghi invited the officers into the apartment. Although PO Ferguson stated that § 87(2)(b) waited in her car while they went to speak with § 87(2)(b) both § 87(2)(b) and § 87(2)(b) stated that she was present while the officers interacted with § 87(2)(b) § 87(2)(b) corroborated the officers' testimony that § 87(2)(b) stated that the officers could enter the apartment. In contrast, § 87(2)(b) stated that he did not invite the officers inside his apartment and that they wanted to come inside, but § 87(2)(b) told them he wanted to speak where they were on the stoop. He then went to walk inside, and the officers followed him before he had a chance to close the door.

§ 87(2)(g)

Therefore, it is recommended that Allegations A and B be closed as *unsubstantiated*.

- **Allegation C) Abuse of Authority: PO Kyle Ferguson threatened to arrest** § 87(2)(b)
- **Allegation D) Abuse of Authority: PO Michael Dimambro threatened to arrest** § 87(2)(b)

PO Ferguson denied ever threatening to arrest § 87(2)(b) but stated that he had an encounter with him in the parking lot of the precinct while he was bringing § 87(2)(b) there to process his arrest. At this time, according to PO Ferguson, § 87(2)(b) was attempting to speak with his brother through the RMP window. This required both being in close proximity to the RMP and speaking to someone under arrest, § 87(2)(g)

§ 87(2)(b) stated that PO Dimambro threatened to arrest him while he interacted with the officers in the stationhouse parking lot. PO Dimambro stated that he never threatened to arrest § 87(2)(b) but that he told him he could be arrested for Obstruction of Governmental Administration if he tried to speak with his brother in the cell area. § 87(2)(g)

Therefore, it is recommended that Allegations C and D be closed as *exonerated*.

- **Allegation E) Force: PO Kyle Ferguson tightly handcuffed** § 87(2)(b)

PO Ferguson denied ever tightening § 87(2)(b) handcuffs and stated that procedure required him to remove a prisoner's handcuffs after placing them in the holding cell. PO Dimambro did not witness PO Ferguson ever tightening § 87(2)(b)'s handcuffs. § 87(2)(b) stated that after he informed PO Ferguson of his brother's shoulder injury, PO Ferguson intentionally tightened his brother's handcuffs to cause him pain, yet § 87(2)(b) did not mention anything about PO Ferguson ever tightening his handcuffs. Moreover, § 87(2)(b) claimed that this happened in front of the desk sergeant and about eight other officers. § 87(2)(b) repeatedly stated that PO Ferguson would not let his brother receive medical attention for § 87(2)(b) simply because PO Ferguson would not let § 87(2)(b) administer § 87(2)(b) himself, even though § 87(2)(b) later stated that PO Ferguson called an EMT for § 87(2)(b) § 87(2)(g).

Therefore, it is recommended that Allegation E be closed as ***unfounded***.

- § 87(4-b) § 87(2)(g)

Team: 4

Investigator: _____ Danielle Pagano _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date